

		Court is unable to determine whether the settlement amount is within the reasonable range, or within the ballpark, of Sodexo's share of liability for Plaintiff's injuries. Based on the foregoing, Sodexo has not made a prima facie showing of a good faith settlement. Goodwill to give notice.
105	Esteban vs. Urth Payroll Services, Inc., 2025-01511289	Motion to Strike – MOOT
106		
107	Hodges vs. Fillman, 2024-01442297	Motion for Leave to File Amended Cross-Complaint – GRANTED Cross-Complainants Michael P. Fillman, William E. Wonderly, Avon Wonderly, and Chandler Wonderly ("Cross-Complainants") move for leave to file a First Amended Cross-Complaint. (Code Civ. Proc. §§ 473(a)(1) & 576.) The motion is unopposed. Courts liberally allow amendments to permit lawsuits to be determined on their merits. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Desney v. Wilder (1956) 46 Cal.2d 715, 751.) "It is well established that 'California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.'" (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.) The Court finds that Cross-Complainants have met all procedural requirements and provided all information in support of the amendment pursuant to California Rules of Court, rule 3.1324. The Court finds the non-opposition is an implied concession to the merits of the motion. (Herzberg v.

		County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529.) Moving parties shall file the proposed First Amended Cross-Complaint within 10 days of the date of this order. Moving parties to give notice.
108	Isaak-Shapiro vs. Irvine Hebrew Day School, 2026-01545143	Demurrer to Complaint – OVERRULED IN PART AND SUSTAINED IN PART WITH LEAVE TO AMEND Motion to Strike Portions Of Complaint – GRANTED WITH LEAVE TO AMEND <u>Demurrer</u> Defendant Irvine Hebrew Day School (“Defendant”) demurs to all eight causes of action in Plaintiff Jerry Isaak-Shapiro’s (“Plaintiff”) Complaint. <u>First Cause of Action: Breach of Contract</u> “The essential elements of a claim of breach of contract, whether express or implied, are the contract, plaintiff’s performance or excuse for nonperformance, defendant’s breach, and the resulting damages to plaintiff.” (San Mateo Union High School Dist. v. County of San Mateo (2013) 213 Cal.App.4th 418, 439.) Defendant contends that the pleading does not set forth the actual contract language establishing that Defendant was obligated to employ Plaintiff for a guaranteed two-year period, nor does it attach the agreement or plead its material terms with sufficient clarity. Also, the pleading alleges that Plaintiff was terminated on May 6, 2024, before completing the first year of the alleged two-year term, yet does not allege facts showing the agreement actually restricted Defendant’s ability to terminate employment prior to the end of that alleged term (Compl. ¶ 50).